

Kgn Stone Crusher v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 16 March 2023 · Writ - C No. 7322 of 2023 · **Writ dismissed; left to paragraph 6.8 objections.**

HEADNOTE

A writ for restoration of supply is not entertained where theft above the sanctioned load, a provisional assessment, and an FIR are disputed and were not disclosed. The consumer is left to file objections under paragraph 6.8 of the U.P. Electricity Supply Code, 2005, and may seek supply from the competent authority on terms. The merits are not decided.

FACTUAL SUMMARY

Kgn Stone Crusher, through proprietor Rafiq Khan, ran a licensed stone crusher mill and moved the High Court for restoration of electricity supply. On written instructions, the Electricity Department stated that an inspection had found theft of 74.6 KW above the sanctioned load, that a provisional assessment order of 17 December 2022 had quantified Rs. 83,24,718, and that an FIR had been lodged. The Department further stated that the writ had suppressed these facts.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Objections under paragraph 6.8 to a provisional theft assessment

HOLDING

Where a consumer seeks restoration by writ after an inspection alleging theft above the sanctioned load, a provisional assessment, and an FIR, and those facts are disputed and were not disclosed, the Court will not interfere. The remedy is to file objections under paragraph 6.8 of the U.P. Electricity Supply Code, 2005, and the consumer may approach the competent authority for supply on terms satisfactory to the licensee. The merits and rival contentions are not decided. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The writ for restoration was dismissed without a decision on the disputed theft assessment; the petitioner was left to file objections under paragraph 6.8 and to seek supply from the competent authority on terms. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THEFT OF 74.6 KW ABOVE THE SANCTIONED LOAD OCCURRED, AND WHETHER THE PROVISIONAL ASSESSMENT OF RS. 83,24,718 DATED 17 DECEMBER 2022 IS SUSTAINABLE

The Court stated that it had not entered into the merits or the rival contentions. ¶ 1

NOT DECIDED — WHETHER ELECTRICITY SUPPLY SHOULD BE RESTORED, AND ON WHAT TERMS

Left to the competent authority, to the satisfaction of the respondents. ¶ 1